IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 201
CA-(CAA)-13/ND/2023

IN THE MATTER OF:
Fortis Emergency Services Limited ... Applicant/Petitioner
and Fortis Hospitals Limited

Under Section: 230-232

Order delivered on 10.11.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SH. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Sr. Adv. U. K. Choudhary, Adv. Sanjeev Sharma, Adv. Mansumyer Singh, Adv. Siddharth Jain, Adv. Anurav Roy
For the RD : Adv. Shakari Mishra

ORDER

Mr. U. K. Choudhary, Ld. Sr. Counsel appearing for the Applicant submitted that the issue of pendency of investigation qua the Transferor/Transferee Company with SFIO cannot be ground to reject the first motion application and the issue can be examined at the time of considering the second motion application for approval of the scheme of amalgamation. Such is also the view of RD. In the wake of the order dated 06.11.2023, Ld. RD entered his appearance and submitted that his only emphasis is that before allowing the application for approval of the scheme, this Adjudicating Authority should issue notice to SFIO and consider the observations of SFIO. Para 4 of the additional affidavit dated 08.11.2023 filed by RD reads thus:

> *" 4. It is bring to the notice of this Hon'ble Tribunal that the affidavit dated 21.08.2023 was filed without the report of Registrar of Companies. Therefore, it is submitted that in addition to the present affidavit dated 21.08.2023, this office will file its detailed affidavit in 2nd motion petition based on the inputs of the Registrar of Companies, if so directed by this Hon'ble Tribunal."*

Arguments heard. **Order reserved.**

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

UPASANA